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Case Name: *Rubalcaba v. R&L Carriers Shared Services, LLC*
Case No.: 23CV423929

This is a representative action arising from alleged wage and hour violations. Before the Court is defendant R&L Carriers Shared Services, LLC's ("Defendant") demurrer to plaintiff Joseph Rubalcaba's first amended complaint ("FAC"). For the reasons stated below, the Court OVERRULES the demurrer to the FAC.

I. Background

On October 6, 2023, Plaintiff began this action by filing a complaint against Defendant asserting a sole cause of action for violation of the Private Attorneys General Act ("PAGA"). The same day, Plaintiff filed a separate class action complaint against Defendant in this superior court: *Rubalcaba v. R&L Carriers Shared Services, LLC*, Case No. 23CV423930 (the "Class Action"). Defendant subsequently filed a notice of removal of the Class Action to federal court: *Joseph Rubalcaba v. R&L Carriers Shared Services, LLC* (N.D. Cal., No. 3:23-cv-06581) (the "Federal Action").

The District Court has dismissed the Federal Action. On April 23, 2024, the District Court granted the motion to dismiss Plaintiff's first amended complaint. (Federal Action (N.D. Cal. Apr. 23, 2024) 2024 U.S. Dist. LEXIS 739958.) Plaintiff filed a second amended complaint in May 2024, and on March 6, 2025, the District Court dismissed the second amended complaint with prejudice. (Federal Action (N.D. Cal. Mar. 6, 2025) 2025 U.S. Dist. LEXIS 40956.)

On May 7, 2026, this Court issued an order granting Plaintiff's motion to dismiss the Class Action (Case No. 23CV423930) without prejudice.

In this action, on November 10, 2025, the Court sustained Defendant's demurrer to the complaint with leave to amend. The Court overruled the demurrer on the ground of uncertainty and sustained the demurrer on the ground of failure to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e). The Court did not reach Defendant's argument that Plaintiff had failed to satisfy the PAGA pre-filing requirements.